Tarlochan Singh vs Central Bureau Of Investigation on 10 March, 2023

Author: Jasmeet Singh

Bench: Jasmeet Singh

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* IN THE HIGH COURT OF DELHI AT NEW DELHI
+ BAIL APPLN. 2301/2022
   TARLOCHAN SINGH ..... Through: Ms. Shruti Manchanda, Adv.
   versus
   CENTRAL BUREAU OF INVESTIGATION ..... Through: Mr. Ripu Daman Bhardwaj, Adv
   CORAM:
   HON'BLE MR. JUSTICE JASMEET SINGH
   ORDER

% 10.03.2023 The matter is taken up today as 09.03.2023 was declared holiday.

1. This is an application filed seeking regular bail in FIR No. RC.BD1/2014/E/0004 dated 19.02.2014 registered by CBI under Section 120B read with Section 409/411/420/467/468/471/474 IPC and Section 4/5 read with Section 6 of Prize Chits and Money Circulation Schemes (Banning) Act, 1978.

2. It is stated by Ms. Manchanda, learned counsel for the applicant that the applicant was a Director in M/s PACL Ltd. from 1996. He was not instrumental in decision making of the company and was not a signatory to the bank accounts of M/s PACL Ltd. He is an Agriculturist by profession and had lent his name to the petitioner company as he was known to Mr. Bhangoo, (the CMD of M/s PGF Ltd.) and Mr. Sukhdev Singh (the MD of M/s PACL Ltd.).

3. It is further stated that the applicant has only studied till secondary level and has never received any funds from M/s PACL Ltd. It is also stated that in the present case, the charge sheet has already been filed and the investigation stands concluded.

4. Ms. Manchanda, learned counsel for the applicant has also relied upon the judgment of the Supreme Court in „Ravindranatha Bajpe vs. Mangalore Special Economic Zone Ltd. and Others [(2021) SCC OnLine SC 806] and more particularly para 28 which reads as under:-

> "28. From the order passed by the learned Magistrate issuing the process against the respondents herein - accused nos. 1 to 8, there does not appear that the learned Magistrate has recorded his satisfaction about a prima facie case against respondent nos. 2 to 5 and 7 & 8. Merely because respondent Nos. 2 to 5 and 7 & 8 are the Chairman/Managing Director/Executive Director/Deputy General Manager/Planner

> & Executor, automatically they cannot be held vicariously liable, unless, as observed hereinabove, there are specific allegations and averments against them with respect to their individual role. Under the circumstances, the High Court has rightly dismissed the revision applications and has rightly confirmed the order passed by the learned Sessions Court quashing and setting aside the order passed by the learned Magistrate issuing process against respondent nos. 1 to 8 herein - original accused nos. 1 to 8 for the offences punishable under Sections 427, 447, 506 and 120B read with Section 34 IPC."

5. She further states that the co-accused has already been granted bail on 20.01.2023 in BAIL APPLN. 2661/2022 titled „Barinder Kaur vs. Central Bureau of Investigation . She also seeks bail on the grounds of parity.

6. Mr. Bhardwaj, learned standing counsel for CBI states that in the present case, he is one of the main conspirators of the fraud as he was the Director in M/s PACL Ltd. He further states that he has attended all the Board meetings where illegal decisions were taken. He states that the applicant is one of the Directors of M/s PACL Ltd. which had siphoned off AUD 138.20 million to two Australian companies.

7. He further states that M/s PACL Ltd. had directly paid Rs. 164 crores to M/s Pearls Infrastructure Projects Ltd. which is its associate company. Another 37 associate companies of M/s PACL Ltd. had siphoned off / diverted Rs. 846.85 Crores to M/s PIPL. He opposes the application on these grounds.

8. In the present case, I have already granted bail to co-accused, Gurnam Singh who was also a Director of M/s PACL from 10.01.1998 to 05.02.2009 in Bail Application No. 2069/2022 dated 28.11.2022, wherein relevant portion reads as under:-

> "13. In the present case, the applicant does not have any criminal antecedents. There is no money trail which is pointing that the applicant has misappropriated funds collected from the general public.
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> 14. The Coordinate Bench has already granted bail to co- accused on 13.06.2022 on similar grounds. In the present case, chargesheeet after investigation has already been filed. There are 441 witnesses named in the chargesheet. The evidence has not started as yet as charges are yet to be framed. The same will take considerable time.
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> 15. I am of the view that it is not a case where the evidence would be concluded in the near future."

9. Similarly, the applicant in the present case has no criminal antecedents. The applicant was not named in the original FIR or in the original charge sheet. The applicant was not actively involved in the operation and management of the company.

10. The charge sheet has already been filed in the present case and the applicant is in custody since 05.01.2022. There is no requirement of custodial interrogation. Evidence in the matter will take considerable time.

11. For the reasons stated above, the application needs to be allowed and the applicant is directed to be released on bail on the following terms and conditions:-

i. The applicant shall furnish a personal bond and a surety bond in the sum of Rs. 5 lakhs each, to the satisfaction of the Trial Court; ii. The applicant shall appear before the Court as and when the matter is taken up for hearing;

iii. The applicant shall join investigation as and when called by the I.O concerned;

iv. The applicant shall provide his mobile number to the Investigating Officer (IO) concerned, which shall be kept in working condition at all times. The applicant shall not switch off, or change the same without prior intimation to the IO concerned, during the period of bail;

v. In case the applicant changes his address, he will inform the IO concerned and this Court also;

vi. The applicant shall not leave the country during the bail period and surrender his passport, if any, at the time of release before the Trial Court;

vii. The applicant shall not indulge in any criminal activity during the bail period;

viii. The applicant shall not communicate with, or come into contact with any of the prosecution witnesses, or any member of the victim s family, or tamper with the evidence of the case.

12. The application is allowed and disposed of in the aforesaid terms.

JASMEET SINGH, J MARCH 10, 2023 / (MS) Click here to check corrigendum, if any